

Court No. - 39

Case :- WRIT - C No. - 27993 of 2014

Petitioner :- Raghubir

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. & 2 Others

Counsel for Petitioner :- Kr. Hans Pratap Singh

Counsel for Respondent :- Baleshwar Chaturvedi

Hon'ble Sanjay Misra,J.

Hon'ble Anant Kumar,J.

We have heard Sri Kr. Hans Pratap Singh, learned counsel for the petitioner and Sri Baleshwar Chaturvedi, learned counsel for respondent-Dakshinanchal Vidyut Vitran Nigam Ltd., Agra.

By means of this writ petition, the petitioner is disputing the electricity bill dated 25.3.2014 (annexure-1 to the writ petition) issued by respondent no. 2-The Executive Engineer.

A preliminary objection has been raised by respondents to state that the dispute of electricity bill can be more effectively decided in the proceedings of Clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005.

We have considered the submission of learned counsel for the parties and find that the disputed question of fact has been raised in this writ petition against the impugned bill. Such disputed question of fact can be better decided by the competent authority under the provisions of Clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005.

In view of the above, this writ petition is finally disposed of by providing that the petitioner may avail the remedy under the provisions of the Uttar Pradesh Electricity Supply Code, 2005.

No order is passed as to costs.

Order Date :- 20.5.2014

Mukesh Kr.